REPORTABLE (12)

(1) MEDIA ALLIANCE OF ZIMBABWE (2) ZENZELE NDEBELE
v
(1) MINISTER OF JUSTICE, LEGAL AND PARLIAMENTARY AFFAIRS N.O. (2) ATTORNEY- GENERAL N.O.

CONSTITUTIONAL COURT OF ZIMBABWE
GARWE JCC, MAKARAU JCC, GOWORA JCC, HLATSHWAYO JCC, PATEL JCC, GUVAVA AJCC & MAVANGIRA AJCC
HARARE: 10 SEPTEMBER 2025 & 15 JULY 2026

T R Mafukidze with *G Nyoni* and *C Kwaramba,* for the applicant

M Chimombe, for the respondents

GARWE JCC:

[1] The present proceedings for confirmation of an order of constitutional invalidity were placed before this Court in terms of s 175(1) of the Constitution of Zimbabwe ("the Constitution"). On 13 June 2025, under judgment number HH/315/25, the High Court ("the Court *a quo*") declared s 22A(3) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] ("the Criminal Law Code") constitutionally invalid on the basis that it infringes ss 39, 58, 61(1) and 67(3) of the Constitution.

[2] Pursuant to the dictates of r 36 of the Constitutional Court Rules, 2025, read together with s 175(1) of the Constitution, where the High Court makes an order of constitutional invalidity, the Registrar must ensure that, within thirty days of the making of such order, a copy of the record of proceedings, reasons for judgment and the court order are placed

before this Court for confirmation. In compliance with this procedure, the Registrar of the High Court forwarded the record to this Court for confirmation.

[3] In the absence of such confirmation, the order of a lower court remains temporary and without legal force. The process empowers this Court to confirm, vary, amend, or set aside the order, ensuring that any declaration of unconstitutionality made by a lower court is properly validated by this Court as the highest authority in constitutional matters.

[4] The applicants had approached the Court *a quo* under s 85(1)(d) of the Constitution, namely, in the public interest. It is not in doubt that any person or entity can invoke s 85(1)(d) in order to vindicate a public interest. Broad as the approach to such capacity to institute proceedings might be, it has limits. More particularly, it must be shown that the applicant is genuinely acting in the public interest and that the public has sufficient interest in the relief he or she seeks.

[5] Having considered the proceedings before the Court *a quo* and the facts of this matter, I find that the declaration of invalidity cannot be confirmed. The applicants did not demonstrate that they were acting in the public interest. Nor did they demonstrate that the public had a sufficient interest in the relief they sought. Moreover, the Court *a quo* could not have, in a s 85(1) application, properly declared s 22 A(3) invalid for infringing s 39 of the Constitution which falls in Chapter 3 of the Constitution. Lastly, the Court *a quo* adopted a wrong approach in interpreting s 22A(3) of the Criminal Law Code and the penalties prescribed in that provision. The declaration of invalidity was made contrary to the law and cannot, for that reason, be confirmed.

[6] Despite concluding that the application was procedurally irregular in several respects, the declaration of invalidity warrants this Court's consideration of the substantive constitutional

question concerning the validity of s 22A(3). Such an approach is required in the interests of justice and to ensure legal certainty. This accords with the position taken in *Maponga & Ors* v *The Minister of Justice, Legal & Parliamentary Affairs and Ors* CCZ 5/26, at para 6, where this Court remarked:

> "Declining confirmation on the basis, for example, that the application in the Court *a quo* was irregular, that the court should have declined jurisdiction or that the applicants did not demonstrate that they had standing, whilst pertinent in confirmation proceedings, would not result in legal certainty, as the need for clarity on the constitutional validity of the invalidated law would remain. Ultimately, it is this consideration that must prevail. Other considerations must remain subsidiary to this overarching requirement. This court has also stated, in *Gonese v Minister of Finance and Economic Development* CCZ 11/23, that in considering whether or not to confirm an order of constitutional invalidity made by a lower court, this court should consider the judgment of the Court as a whole and satisfy itself that it was correctly made. This Court stated at p. 13 of the judgment:
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> 'Where this Court reaches the conclusion that the order of invalidity made by the lower court cannot be confirmed, it behoves the Court to clearly delineate the basis or bases upon which it determines that the decision made by the lower court was incorrect. A decision to decline confirmation may therefore be predicated on just one or several bases, be they procedural or substantive and irrespective of whether or not one basis may, ordinarily, be fully dispositive of the matter on its own…'
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> I fully commend such an approach."

[7] Despite the procedural shortcomings just referred to, the constitutional validity of s 22A(3) therefore falls to be determined on the merits to ensure legal certainty.

FACTUAL BACKGROUND

[8] The first applicant is a common law *universitas*, a coalition of various media support organisations. The second applicant is a Zimbabwean citizen who is said to be passionate about her constitutional rights and freedoms and jealously guards the Bill of Rights under Chapter 4 of the Constitution. The first respondent is the Minister of Justice, Legal and Parliamentary Affairs, who is charged with the administration of the Criminal Law Code

in Zimbabwe. The second respondent is cited in her official capacity as the principal legal adviser to the Government of Zimbabwe.

[9] The applicants filed a constitutional application in the High Court of Zimbabwe under case number HC 4849/23 in terms of s 85(1)(d) of the Constitution, namely, in the public interest. They challenged the constitutionality of the Criminal Law (Codification and Reform) Amendment Act, 2023, colloquially referred to as "the Patriotic Act", which was signed into law by the President in July 2023. That amendment now constitutes ss 22A(2) and 22A(3) of the Criminal Law Code.

[10] The applicants challenged the constitutionality of s 22A, arguing that, although intended to promote patriotism, the provisions are unconstitutional. Specifically, regarding s 22A(2), the applicants averred that the definition of "agencies, proxies or entities of foreign governments" was too vague and broad to achieve the object of the statute. It was averred that it was difficult to understand how a person accused of the offence could be said to have known in advance that any foreign person he or she meets was to be assumed to be acting on behalf of a foreign government. The definition was therefore said to infringe constitutionally protected freedoms of expression, assembly, association and the right to privacy.

[11] The applicants further averred that the offence of "wilfully damaging the sovereignty and national interest of Zimbabwe" created by the above sections was vague. The terms "sovereignty" and "national interest" were not defined. Law enforcement officers were likely to interpret the sections in a broad manner.

[12] The applicants also submitted that s 22A(3)of the Criminal Law Code, which makes it an offence for citizens and permanent residents to wilfully injure the sovereignty and

national interest of Zimbabwe by actively (within or outside of Zimbabwe) participating in any meeting whose object involves the consideration of the implementation or enlargement of sanctions or a trade boycott against Zimbabwe, was invalid for being too broad. Because of such overreach, the applicants averred that it was unconstitutional.

[13] The applicants further contended that s 22A(3)(ii) violates s 39 of the Constitution because, under s 22A(3)(ii), a conviction could lead to the termination of citizenship, contrary to s 39 of the Constitution which permits revocation of citizenship by birth or registration only where such was obtained through fraud, false representation, or concealment of a material fact. Accordingly, the applicants argued that it is unconstitutional for any law to provide for the termination of citizenship by descent or registration on grounds outside those specified in s 39 of the Constitution.

[14] The applicants further impugned the constitutionality of ss 22A(3)(ii)(C) and (D), which impose additional penalties such as disqualification from voter registration or voting for five to fifteen years, prohibition from holding public office for five to fifteen years and vacating a public office held from the date of conviction. They argued that these provisions infringe s 67(3) of the Constitution, which guarantees every citizen the right to stand for election and hold public office.

[15] The respondents opposed the application before the Court *a quo*, arguing that the amendment to the Criminal Law Code was enacted considering Zimbabwe's recent history relating to actions deemed unpatriotic. They contended that s 22A(2) clearly defines the offence and provides sufficient guidance for citizens to regulate their conduct. The respondents also noted that s 22 has long been part of the Criminal Law Code and articulates what constitutes subverting, upsetting, overthrowing, or overturning a constitutional government. They further asserted that none of the provisions impugned

by the applicants infringe ss 61, 58, 67(3), 67(9), or 39 of the Constitution. The respondents also argued that the provisions simply criminalise actions such as inciting foreign agents or governments to invade Zimbabwe, participating in meetings discussing the subversion or overthrow of the government or promoting sanctions against the government or its officials.

[16] The respondents further argued that s 22A(2) is clear, lawful and does not infringe any constitutional rights. They maintained that the provision protects national security and economic interests, criminalising only meetings with foreign governments aimed at planning armed intervention against Zimbabwe. They denied all alleged constitutional violations.

[17] In its judgment, the Court *a quo* determined that s 22A(2) of the Criminal Law Code was not vague, ambiguous or imprecise and, consequently, dismissed that part of the application for lack of merit.

[18] As regards s 22A(3), the Court *a quo* observed that it was unclear why s 22A(2) defines the phrase "actively partake," while s 22A(3) uses the term "intentionally partakes" without providing a corresponding definition. The court held that this inconsistency created uncertainty regarding the nature, scope and extent of participation contemplated under s 22A(3). It further noted that the phrase "intentionally partakes" forms a key element of the offence relating to attendance at such meetings and the requisite mental state. Consequently, the court concluded that s 22A(3) was vague and therefore unconstitutional.

[19] The Court also held that s 22A(3) is rendered unconstitutional by most of the penalties imposable following a conviction for the offence. However, it found that the penalty

provision under s 22A(3)(i), which provides for a fine or imprisonment for up to ten years, or both, is not unconstitutional, as it affords judicial officers the discretion to impose an appropriate sentence depending on the circumstances of each case.

[20] The Court *a quo* found that the penalty under s 22A(3)(ii) of revocation of citizenship is an extreme form of punishment and that it does not fall within the constitutionally permissible grounds for revoking citizenship.

[21] Regarding the voting restrictions, the Court noted that s 67(3) of the Constitution guarantees the right to vote and to hold public office and that any removal from office is governed by procedures established under relevant subsidiary legislation. The Court therefore held that there is no justification for the Criminal Law Code to impose restrictions on voting as a criminal penalty. Consequently, the Court concluded that s 22A(3) is invalid as it violates ss 39, 58, 61(1), and 67 of the Constitution. Following that declaration, the matter was then referred to this Court for confirmation as already noted.

APPLICANTS' SUBMISSIONS BEFORE THIS COURT

[22] In his heads of argument before this Court, counsel for the respondents raised the preliminary objection that there was an absence of a live dispute in the matter. At the hearing, the Court directed the parties to address it on the preliminary issue raised as well as the merits of the matter.

[23] Counsel for the applicants argued that the matter was not academic. He further submitted that, in bringing the application before the Court *a quo* under s 85(1)(d) of the Constitution, the applicants were only required to demonstrate a likelihood of their rights being infringed. Counsel maintained that the overarching principle in bringing an application under s 85 was "a reasonable probability of such a

contravention occurring." As such, counsel argued that members of the first applicant, due to the nature of their work, could be arrested for contravening ss 22A(2) and 22A(3), hence the constitutional challenge to the provisions.

[24] On the merits, counsel argued that, in light of the concession by the respondents that the wording in s 22A(3) of the Criminal Law Code contains an error, the Court could not assign a meaning to the phrase "intentionally partakes," as that function lies within the exclusive mandate of Parliament in terms of s 117 of the Constitution. Counsel further contended that the phrase carries a meaning distinct from the words "actively partake" used in s 22A(2) of the Code. Consequently, counsel argued that s 22A(3) is overly broad in its scope, as it criminalises even those who may attend a meeting without knowledge that its agenda was to call for sanctions or a trade boycott against Zimbabwe.

[25] Counsel argued that the citizenship-related penalty in s 22A(3) is unconstitutional as the right to citizenship has no limitations. Counsel contended that the other penalty provisions in s 22A(3) are equally unconstitutional, as they conflict with s 67 of the Constitution and the Fourth Schedule of the Constitution, which limits disqualification from voting or holding office to a maximum of five years and not fifteen years as provided for in the section. Counsel maintained that since s 22A(3) allows for disqualification for a period of five to fifteen years, it contradicts these provisions as well as s 138 of the Electoral Act [*Chapter 2:13*] ("the Electoral Act"), rendering the penalty unconstitutional.

[26] The Court inquired of counsel whether the challenge based on s 39 of the Constitution could have been properly determined by the Court *a quo*, given that the application was brought under s 85(1)(d) of the Constitution, a provision that permits a cause of action predicated on an alleged infringement of rights protected under Chapter 4 of the

Constitution. Counsel conceded that the declaration of invalidity relating to s 39 could not be sustained, since a cause of action under s 85(1)(d) of the Constitution relates exclusively to the enforcement of fundamental rights protected under Chapter 4 and not to other rights found elsewhere in the Constitution.

RESPONDENT'S SUBMISSIONS BEFORE THIS COURT

[27] Counsel for the respondents maintained his stance that the application before the Court *a quo* was predicated on abstract facts and that, consequently, no live dispute existed before the Court. Counsel further argued that it was insufficient for the applicants merely to assert an interest in the protection of rights without showing how those rights had been, or were likely to be, infringed.

[28] The Court drew the attention of respondent's counsel to the provisions of s 22A(3)(5) of the Criminal Law Code, which give context to the phrase "intentional partaking" used in s 22A(3). Counsel then withdrew his earlier concession and agreed with the Court that there was no error in the wording of s 22A(3) and that the provision criminalises the intentional attendance at, and participation in, a meeting, depending on the role played by the individual.

CONFIRMATION OF DECLARATIONS OF INVALIDITY - THE LAW

[29] Proceedings for confirmation of constitutional invalidity take place pursuant to the provisions of s 175(1) of the Constitution which provide as follows:

> "(1) Where a court makes an order concerning the constitutional invalidity of any law or any conduct of the President or Parliament, the order has no force unless it is confirmed by the Constitutional Court."

[30] In *Makumire* v *Minister of Public Service, Labour and Social Welfare & Anor* CCZ 1/20, at p 6, MALABA CJ elucidated the nature of confirmation proceedings. The learned Chief Justice remarked as follows:

> "Confirmation proceedings are in the nature of a review. The Court, as the highest court in constitutional matters, is endowed with the power to review orders of constitutional invalidity made by lower courts in order to control declarations of constitutional invalidity made against the highest organs of State. See *Pharmaceutical Manufacturers Association of South Africa and Anor: In re Ex parte President of the Republic of South Africa and Others* 2000 (2) SA 674 (CC) at paras 55-56."

[31] Section 167(3) of the Constitution empowers the Constitutional Court to determine and make the final decision on the constitutionality of any Act of Parliament or conduct by the President or Parliament. As the highest Court in constitutional matters, the Court has the constitutional authority to confirm any declaration of constitutional invalidity made by another court before such an order takes effect. Accordingly, an order of constitutional invalidity remains provisional and without legal force until it is confirmed by this Court. See *S* v *C (A Juvenile) (Justice for Children`s Trust and Zimbabwe Lawyers for Human Rights Intervening as Amici Curiae)* 2019 (2) ZLR 12 (CC).

[32] In determining whether an impugned legislative provision requires confirmation, the Court must first consider whether the challenge to the law's constitutional validity was properly brought before the lower court. This entails ascertaining whether the court had jurisdiction over the matter, whether a party had the requisite *locus standi* and whether a genuine dispute existed between the parties, justifying a claim of a probable constitutional violation. In the absence of a matter involving actual or potential harm to rights or interests, there can be no proper challenge to the validity of the law. This reflects the longstanding principle that as a matter of judicial policy, constitutional issues ought to be considered only and if when it is necessary to do so. See *S* v *Dlamini* 1999 (4) SA 623

(CC). However, considering the current approach of this Court as indicated earlier in this judgment, these considerations may be subservient to the overarching requirement for certainty in the law.

[33] Based on the stages of inquiry guiding confirmation proceedings, I consider that the following are the issues that require determination by the Court:

(i) whether or not the High Court had jurisdiction over the matter.

(ii) whether the applicants possessed the requisite *locus standi*.

(iii) whether or not the order of constitutional invalidity issued by the court *a quo* was correct. I proceed to deal with each of these issues in turn.

WHETHER THE COURT *A QUO* HAD JURISDICTION IN THIS MATTER

[34] The applicants approached the Court *a quo* in terms of r 10(1) as read with r 10(2) of the High Court Rules, 2021 ("the High Court Rules"), seeking declaratory orders of constitutional invalidity in respect of ss 22A(2) and 22A(3) of the Criminal Law Code. Rule 10 requires any person who approaches the High Court raising a constitutional issue or challenge, to give notice thereof and a clear and succinct description of the constitutional issue concerned. In support of their right to do so, the applicants stated in their founding affidavit that they were bringing the matter under s 85(1)(d) of the Constitution, alleging that the above provisions of the Criminal Law Code infringed fundamental rights and freedoms protected by the Constitution. The applicants did not approach the Court *a quo* in terms of r 107 which makes provision for the procedure to be followed in constitutional applications. As the issue was not raised either *a quo* or before this Court, I leave the question open whether the application was properly filed in terms of r10 instead of r107 of the High Court Rules, 2021.

[35] Section 171(1)(c) of the Constitution empowers the High Court to decide constitutional matters, except those that lie exclusively in the province of the Constitutional Court. Accordingly, the High Court has jurisdiction to hear a constitutional application lodged under s 85(1) of the Constitution. It bears stressing at this stage that a s 85(1) application must concern an infringement of a Chapter 4 right, as s 85(1) is specifically designed as an enforcement mechanism for protecting rights enshrined in the Bill of Rights. As pertinently observed in Stone *& Anor* v *Central Africa Building Society & Ors* CCZ 5/24, at par 33- 35:

> "The procedure in s 85 (1) (a) of the Constitution is a direct enforcement procedure for the enforcement of fundamental rights and liberties. It is meant to secure constitutional remedies. It cannot be invoked in respect of non-constitutional remedies.
> …
> A court that is approached in terms of s 85 (1) (a) of the Constitution cannot exercise its jurisdiction on any other matter besides matters that seek redress for direct and actual infringements or likely infringements of fundamental rights and freedoms set out in the Bill of Rights……"

See also I. Currie and J. De Waal, *The Bill of Rights Handbook*, *Sixth Edition*, at p 74.

[36] The applicants approached the Court *a quo* under s 85(1)(d) of the Constitution, challenging the constitutional validity of ss 22A(2) and 22A(3). Within that challenge they, *inter alia*, sought to challenge the validity of the penal provisions of s 22A(3), alleging that the penal provisions allowing the revocation of citizenship in the event of a conviction were inconsistent with s 39 of the Constitution. Citizenship falls under Chapter 3 of the Constitution and cannot therefore be enforced through the instrumentality of s 85(1) of the Constitution. See *du Plessis*, *Penfold* and *Brickhill*, *Constitutional Litigation*, at pp 44 - 5.

[37] The position that an application under s 85 must be based on an allegation of the infringement of fundamental right only and that it cannot extend to any other rights found outside Chapter 4 of the Constitution is now well established in this jurisdiction. This is consistent with the principle that s 85 provides an enforcement and protection mechanism of fundamental rights enshrined in Chapter 4 of the Constitution.

[38] On the facts of this matter, it follows that, although the Court *a quo* had jurisdiction to entertain the application, there was a conflation of causes of action before the Court, the first being the allegation of the violation of fundamental rights enshrined in Chapter 4 of the Constitution and the second being the alleged infringement of s 39 of the Constitution which lies outside the Bill of Rights. This situation has been frowned upon by this Court in a number of decided cases. More specifically, in *Zimbabwe Human Rights Association* v *Parliament of Zimbabwe & Ors* CCZ 6/22 this Court stated, at p 23 of the judgment, as follows:

> "In essence, what the applicant has purported to do is to proceed under two mutually exclusive provisions of the Constitution, viz. s 85(1) and s 167(2)(d). This course of action was pointedly frowned upon in Central African Building Society v Stone & Ors SC 15-21, at p. 17, para. 38, where GWAUNZA DCJ observes that:
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> > '…. an application under s 85 of the Constitution should not be raised as an alternative cause of action …. . Section 85(1) is a fundamental provision of the Constitution and an application under it, being *sui generis*, should ideally be made specifically and separately as such.'
> >
> > By proceeding as it has done, the applicant has effectively disabled itself from properly pleading its legal standing and cause of action. It has also failed to comply with the rules governing the procedure to be followed."

[39] As already noted, applicants' counsel conceded, during oral argument, that approaching the Court *a quo* in terms of s 85 of the Constitution on the basis that s 39 of the Constitution had been violated was wrong at law. To that extent the application *a quo*

was therefore improperly made and the Court a *quo* ought to have struck the matter off the roll on that basis. That notwithstanding, an order of constitutional invalidity having been made, and the matter having been referred to this Court for confirmation, the need for certainty requires the Court to decide the matter irrespective of these other issues - *Constitutional Litigation, op. cit,* at p 44.

***LOCUS STANDI* OF THE APPLICANTS**

[40] The issue of standing is one of the principles considered under the doctrine of justiciability. Section 85(1) of the Constitution, like its predecessor, s 24(1) of the former Constitution of Zimbabwe, 1980, provides for the protection of fundamental human rights and freedoms. It is settled that s 85 (1) is considerably wider than its predecessor in terms of locus *standi* for parties seeking to bring applications under it. The liberalisation of the narrow conception of standing and the provision of a fundamental right of access to justice compel a court exercising jurisdiction under s 85(1) of the Constitution to adopt a broad and generous approach to standing – *M & Anor* v *Minister of Justice, Legal and Parliamentary Affairs NO & Ors* 2016 (2) ZLR 45 (CC). The current approach to standing requires the Court to eschew over reliance on procedural technicalities in order to afford full protection of the fundamental rights and freedoms enshrined in the Bill of Rights.

[41] In *Law Society of Zimbabwe* v *Parliament of Zimbabwe & Ors* CCZ 10/23, at para 41, the Court defined the concept of *locus standi,* in general terms, as follows:

> "[41] *Locus standi in judicio* refers to one's right, ability, or capacity to bring legal proceedings in a court of law. One must justify such right by showing that one has a direct and substantial interest in the subject-matter and outcome of the litigation
>
> [42]…

> [43] In accordance with the general rule that the party instituting proceedings must allege and prove that he has *locus standi,* the onus of so establishing rests upon the applicant. Consequently, a litigant must show that he has the right or capacity to bring a matter to court and a right to appear in court. *Locus standi* is the other side of the coin to jurisdiction. It is incumbent therefore that the applicant establishes *locus standi in judicio* to invoke the jurisdiction of the court to exercise its power in its favour. See *Mars Incorporated* v *Candy World (Pty)* Ltd 1991 (1) SA 567 (AD) at 575 H.
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> [44] A party instituting legal proceedings of any nature must show that both he and the party being sued, in layperson's terms, have a real interest in the matter being brought to court. A litigant must show his authority to sue or be sued and that the other party is one over which the court can exercise its jurisdiction. Any party instituting process in which relief is sought from the court is obliged to place itself as a party before the court is seized with the dispute."

[42] *Locus standi* is, therefore, the legal right or capacity possessed by a litigant to bring an action or to appear in court. In general, the legal standing of a party is deeply rooted in the existence of a direct or substantial interest in the subject matter. It therefore follows that if the subject matter is found to be academic or hypothetical, in the sense that it does not raise an earnest controversy, a litigant cannot possess *locus standi* as such litigant would not have a direct and substantial interest in the matter. This has been the position under the common law but, as already noted, the situation dramatically changed with the coming into operation of the 2013 Constitution. Whilst it is ordinarily not in the public interest for proceedings to be brought in the abstract, the position is now settled that there may be circumstances in which it will be in the public interest to bring proceedings even if there is no live dispute between parties.

[43] *Locus standi* in constitutional matters must be understood differently from the standing normally required in ordinary litigation. Due to the expansive nature of s 85(1) which gives various persons, entities and associations the right to approach the court whenever an allegation of human rights violation arises, the *locus standi* envisaged therein is less

restrictive but more expansive. In *Gonese & Anor* v *President of Zimbabwe & Ors* 2018 (2) ZLR 670 (CC), this Court reiterated the position and stated as follows:

> "In the *Doctors for Life* case (*supra*), at para 218, Ncgobo J recognized the need to find a proper balance between avoiding improper intrusions into the domain of Parliament and ensuring that constitutional provisions are sufficiently justiciable so as not to be rendered nugatory. The latter consideration, in my view, behoves this Court to adopt a liberal and generous approach to locus standi in matters involving constitutional rights and obligations. This is so notwithstanding the constitutional and statutory independence enjoyed by Parliament in the control of its own affairs. See *Smith* v *Mutasa N.O. & Anor* 1989 (3) ZLR 183 (SC) at 208 & 209. See also *Mudzuru & Anor* v *Minister of Justice, Legal and Parliamentary Affairs N.O. & Ors* CCZ 12/2015, at pp. 13-15, where this Court, per Malaba DCJ (as he then was), eschewed the narrow traditional conception of *locus standi* in favour of a broad and generous approach to standing in constitutional matters."

[44] While *locus standi* in constitutional matters is generally approached less restrictively and more expansively in order to give effect to the letter and spirit of s 85, the key consideration is that a litigant must demonstrate that he or she has sufficient interest (not necessarily their own) in obtaining the remedy they seek. The section allows for varying degrees of standing, which may differ depending on the particular cause of action and the circumstances of each case. In *Combined Harare Residents Association & Ors* v *The Minister of Local Government, Public Works and National Housing* CCZ 3/24, at para 137-138, the Court remarked as follows:

> "Applications for constitutional relief do not, therefore, require the same standing in all cases. As stated, the standing is wide in some instances whilst it is restricted in others. It therefore depends on the subject matter of the application. *What is clear however is that an applicant in a constitutional matter must show some legal interest in the matter.*
>
> Therefore, it is not sufficient for an applicant, in a matter such as the present, to simply aver that he or she or it is interested in a particular area of the law or in a particular subject matter in order to show that he/she/it has *locus standi.* The only way that a litigant, such as each of the applicants in this case, *may demonstrate that he or she or it has locus standi is by referring to a cause of action in which his or her legal interest in the subject matter of litigation may be discerned*."(emphasis added)

[45] In invoking s 85(1), a litigant only needs to allege that a right in Chapter 4 has been infringed or is likely to be infringed. Whether or not a litigant is ultimately successful depends on other considerations, but he or she will have standing to seek relief in these circumstances. This is because standing is a threshold issue and a court must assume that the challenge the litigant seeks to bring is justified. Where, however, the standing is challenged *in limine,* the Court must determine the issue on the assumption that the allegations relied upon by the litigant are correct. The basis on which the allegation is made must however be clearly set out- *The Bill of Rights Handbook, op.cit*.at p 78.

[46] In *M & Anor* v *Minister of Justice, Legal and Parliamentary Affairs NO & Ors* (*supra*), MALABA CJ made the following pertinent remarks on the question of *locus standi* under s 85(1)(d) of the Constitution:

> "It is not necessary for a person challenging the constitutional validity of legislation to vindicate public interest on the ground that the legislation has infringed or infringes a fundamental human right, to give particulars of a person or persons who suffered legal injury as a result of the alleged unconstitutionality of the legislation. Section 85(1)(d) of the Constitution requires the person to allege that a fundamental human right enshrined in Chapter 4 has been, is being or is likely to be infringed. He or she is not required to give particulars of a right holder."

[47] The position that a person bringing a constitutional challenge in the public interest is not required to specify the person or persons who would have suffered legal harm due to the unconstitutionality of a law reflects the approach consistently adopted by the courts in public interest litigation. Many jurisdictions the world over have accepted that, whenever there is a public wrong or injury caused by an act or omission of the State or public official which is contrary to the law, any member of the public, acting *bona fide* and having a sufficient interest, can institute an action to address such wrong doing. However, in asserting a public interest challenge, an applicant must demonstrate that the person or

group whose interest they rely on is directly affected by the law or conduct before he or she or it will have standing - *The Bill of Rights Handbook*, *op. cit*, at p 78. The public interest to be served must be ascertainable.

[48] There are many categories of public interest. Just like an association acting in the interest of its members must show that the members have sufficient interest in the remedy it seeks, so too must a person acting in the public interest show that the public has a sufficient interest in the remedy he or she seeks. The prime consideration is whether the alleged infringement of a fundamental right has the effect of prejudicially affecting or potentially affecting the community at large or a sizeable segment of the community. The presumption is that there would be no identifiable persons or determinate class of persons who would have suffered legal injury.

[49] As already noted, s 85(1) requires a litigant to demonstrate that a fundamental right or freedom enshrined in Chapter 4 has been, is being or is likely to be infringed. In this case, the applicants, acting in the public interest, alleged a likely violation of various fundamental rights. I find that the allegation was a bare and bald one and not substantiated. It was not demonstrated how the fundamental rights of the public were likely to be infringed. Put another way, it was not demonstrated in what way the public had a sufficient interest in the remedy the applicants sought *a quo*.

[50] In the founding affidavit before the Court *a quo*, the first applicant stated:

> "10 The applicants are approaching the court in the public interest, in terms of s 85 (1)(d) of the Constitution of Zimbabwe Amendment (No. 20) Act, 2013…
> This section entitles any person to approach a court, alleging that a fundamental right or freedom enshrined in the Constitution has been, is

being, or is likely to be infringed. The applicants have the capacity to bring this application.

11. It is the contention of the applicants that the below impugned provision of the Criminal Law (Codification and Reform Act) amendment Act, 2023, (Amendment act) violate fundamental human rights and freedoms of citizens of Zimbabwe, and must be struck out.

12. This is a court application for the following declaration orders emanating from the Amendment to the Criminal Code:

12.1. The definition of "Agents, proxies or entities of the foreign government, is overly broad and consequently unconstitutional.

12.2. …"

[51] This is all that the applicants said in making the application. How the public was directly affected by the law was not demonstrated. Nor was it shown how the public had a sufficient interest in the remedy they sought *a quo.*

[52] There is some suggestion, made for the first time in the applicant's heads of argument before this Court, that the law in question punishes both a person who attends the meeting in question with the intention of encouraging the imposition of sanctions and a person who attends but discourages the imposition of such sanctions. During oral submissions before this Court, the applicants' counsel suggested that a member of the public or a journalist attending the meeting would feel insecure as he or she would not know where to draw the line. Counsel for the applicants further stated that the applicants "are journalists". Naturally journalists are not the public for purposes of s 85(1)(d) of the Constitution, although they may be part of the public. One of the functions of the first applicant as a partnership of media organisations in Zimbabwe is to advocate for media law and policy reform, to ensure a free, fair independent and pluralistic media and promote, *inter alia*, the rights of media workers. It seems to me, but I make no firm

finding in this regard, that a class action under s 85(1)(c) or an application in terms of s 85(1)(e) may have been more appropriate.

[53] There is a widely held misconception that all that a litigant approaching the Court under s 85(1)(d) needs to do is allege that he/she/it is approaching in the public interest and that such litigant need not do anything else. Whilst in terms of this provision such allegation allows a litigant to approach the court, it is clear that he must show how the relief he seeks will benefit the public. This is necessary in a case, such as the present, where the respondent disputes that there was a likelihood of the violation of a fundamental right. A court must be cautious in affording standing to an applicant approaching the court under s 85 (1)(d) and should accordingly require such applicant to demonstrate that he or she is genuinely acting in the public interest.

[54] There are a number of factors that have been formulated to assist a court in deciding whether or not a person is acting in the public interest. The need to adopt such an approach arose because of the need to exclude busy bodies and other "meddlesome interlopers" who may want to advance their own agenda by abusing public interest litigation. Such factors include whether there is another reasonable and effective manner in which the challenge can be brought, the nature of the relief sought and the extent to which it is of general and prospective application, the range of persons or groups likely to be affected by the order of the court, the degree or vulnerability of the people concerned and the consequences of the infringement of the right. The test covers cases of marginalised or underprivileged persons in society who, due to reasons such as indigence, disability, illiteracy, socially and economically disadvantaged positions, are unable to approach a court and vindicate their rights. The interest that is required to be established must therefore be that of the public as distinct from that of an individual.

[55] It seems to me that the respondents were entitled to question the applicants' standing in seeking relief on behalf of the public before the Court *a quo*. A bald allegation of public interest was made but never substantiated. The public interest that was to be served was not ascertainable. To the contrary, from the submissions made, it appears it was more the interests of journalists and members of the media that the applicants sought to have protected rather than those of the public in general. It was not suggested that journalists are an indeterminate and vulnerable group or that they are unable to protect their fundamental rights. There was no suggestion that they are unable to engage in a class action in term of s 85(1)(c) or that the first applicant cannot seek relief on their behalf in terms of s 85(1)(e). I consider therefore that the applicants did not demonstrate in the Court *a quo* that they had the necessary standing to approach the Court in the public interest.

WHETHER THE APPLICANTS' CAUSE OF ACTION WAS JUSTICIABLE

[56] Closely linked to the issues whether the Court *a quo* had jurisdiction to hear the matter and whether the applicants had the requisite standing, is the question whether the application was founded on a real, earnest and vital controversy. This is part of the doctrine of justiciability. This principle is, in turn, generated by the higher-level principle of avoidance which requires that the judicial resolution of constitutional issues should only take place as a matter of last resort and that decisions should be taken only on those issues that the facts of a case require to be resolved – *The Bill of Rights, Handbook*, *op.cit*, at pp 72 – 73. It bears mention at this stage that the principle of avoidance is part of our law. This Court has however grappled with the extent to which it may entertain and decide applications to enforce the fundamental rights of the public at large, resulting in a lack of clarity on the matter. As stated in the *Bill of Rights, Handbook, op. cit* at p 83, an

application under s 85(1)(d) is the most difficult of the s 85 (1) categories, even in South African jurisprudence.

[57] Constitutional matters are generally adjudicated on the premise that courts exist to address live infringements of constitutional rights. In general terms, a real controversy or real dispute must exist before a court can exercise its jurisdiction. A real or live dispute denotes a genuine and existing controversy or dispute involving the legal rights or interests of the parties, which falls within the court's authority to determine. The decision or order issued at the conclusion of the proceedings must be one that is capable of being enforced at law.

[58] Courts are established to resolve conflicts that remain unresolved through private means and ordinarily refrain from deciding hypothetical or purely academic matters that no longer present a practical issue. The constitutional restrictions on the exercise of judicial authority, together with the recognition that such authority is inherently limited, have developed into the comprehensive doctrine referred to as "justiciability". See A L Bendor, "*Are there any limits to justiciability? The Jurisprudential and Constitutional Controversy in light of the Israeli and American experience*" IND. INT'L & COMP. L. REV, p 312 and *Khupe & Anor* v *Parliament of Zimbabwe & Ors* 2019 (3) ZLR 915 (CC). Justiciability is therefore a broad constitutional law concept that determines if a court has the authority to hear a case, going beyond mere procedural rules to include both the substance and ripeness of the dispute.

[59] In *Flast* v *Cohen* 392 U.S. 83 (1968) the Supreme Court of the United States of America, at p 95, defined justiciability as follows:

> "Justiciability is the term of art employed to give expression to this dual limitation placed upon federal courts by the *'case and controversy'* doctrine.

> Justiciability is itself a concept of uncertain meaning and scope. Its reach is illustrated by the various grounds upon which questions sought to be adjudicated in federal courts have been held not to be justiciable. *Thus, no justiciable controversy is presented when the parties seek adjudication of only a political question, when the parties are asking for an advisory opinion, when the question sought to be adjudicated has been mooted by subsequent developments, and when there is no standing to maintain the action.*"(emphasis added)

[60] I Currie and J De Waal, in *The Bill of Rights Handbook, op.cit,* provide the conceptual framework underpinning the principles of justiciability as follows:

> "There are three principal sets of rules and principles that can be grouped under the broad heading of 'justiciability'. They are standing, which relates to the relationship between the applicant in the case and the particular relief sought, and ripeness and mootness, which relate to the timing of the application. All can be understood as elaborations of a more fundamental principle that the courts should decide only cases entailing a 'real, earnest, and vital controversy' between litigants and not entertain merely 'hypothetical' cases, or cases that are only of 'academic' interest'."

[61] In the American case of in *Liverpool, New York and Philadelphia Steamship Co* v *Commissioners of Emigration* 113 U.S. 33 (1885) the Supreme Court of the United States of America at p 39 remarked that a court:

> "… has no jurisdiction to pronounce any statute, either of a State or of the United States, void because [it is] irreconcilable with the Constitution except as it is called upon to adjudge the legal rights of litigants in actual controversies. In the exercise of that jurisdiction, it is bound by two rules, to which it has rigidly adhered: one, never to anticipate a question of constitutional law in advance of the necessity of deciding it; the other, never to formulate a rule of constitutional law broader than is required by the precise facts to which it is to be applied."

[62] Further, in an article by C. Loots titled *Standing, Ripeness and Mootness* published in *Constitutional Law of South Africa* (2013), Second Edition, at 7-17, the author warns against 'ripeness *qua* premature action' in instances where an applicant complains of the validity of a law which has not personally affected them.

[63] It is apparent from the above authorities that the doctrine of justiciability comprises three key components: standing, ripeness, and mootness. The doctrine involves a fourfold inquiry that examines whether the litigant has standing to seek relief, whether the dispute is ripe for adjudication, whether the matter has become moot and whether the issue is appropriate for judicial intervention. Ripeness and mootness relate to the timing of the application, more specifically whether a matter constitutes a real and earnest dispute that the court can adjudicate on and produce a judgment enforceable between the parties. Ripeness concerns the premature bringing of a dispute before the court, whereas mootness arises when, due to changed circumstances, the dispute has ceased to be live, rendering any court decision incapable of producing a practical effect. Only once it is confirmed that a matter is ripe for determination and presents a real, earnest and vital controversy, affecting the legal rights of the parties, can the court determine whether the matter warrants judicial intervention.

[64] The principle of ripeness is derived from the broader principle of constitutional avoidance and is primarily aimed at preventing courts from becoming involved in abstract disputes by avoiding premature adjudication. See *Ruvinga* v *Portcullis (Pvt) Limited* CCZ 21/17 and *National Coalition for Gay & Lesbian Equality & Others* v *Minister of Home Affairs & Others* 2000 (2) SA 1 (CC). As early as 1936, the United States courts had formulated the seven famous rules in *Ashwander* v *Tennessee Valley Authority Tennesse Valley Authority*, 297 US 288 (1936) regulating the doctrine and operation of constitutional avoidance.

[65] The second rule in *Ashwander*, namely, that a court will not anticipate a question of constitutional law in advance of the necessity of deciding it, gave birth to the principle of ripeness. Ripeness, therefore, involves assessing the appropriate timing for bringing a

[66] constitutional challenge. If a constitutional issue can be addressed more effectively at a later stage and the applicant gains no practical benefit from an earlier ruling, such applicant must wait until the court can base its decision on concrete relief. A court will not hear a matter that is premature. It must exercise its jurisdiction in adjudicating matters involving rights or interests that have been infringed or are threatened. The concept also applies where alternative remedies have not been exhausted or where the issue can be resolved without reference to the Constitution. See *Zimbabwe Women Lawyers Association* v *Minister of Justice, Legal and Parliamentary Affairs & Ors* CCZ 13/21.

[67] In the South African case of *Ferreira* v *Levin NO & Ors; Vryenhoek and Others v Powell NO and Others* 1996 (1) SA 984 (CC) ripeness was stated to be a matter of timing, with the court holding that only a matter that is ripe may be adjudicated upon. KRIEGLER J at par 199 aptly remarked as follows:

> "The essential flaw in the applicants' cases is one of timing or, as the Americans and, occasionally, the Canadians call it, "ripeness". That term has a particular connotation in the constitutional jurisprudence of those countries which need not be analysed now. The doctrine of ripeness serves the useful purpose of highlighting that the business of a court is generally retrospective. It deals with situations or problems that have already ripened or crystallized, and not with prospective or hypothetical ones. Although, as Professor Sharpe points out and our Constitution acknowledges, the criteria for hearing constitutional case are more generous than for ordinary suits, even cases for relief on Constitutional grounds are not decided in the air…"

[68] Before this Court, counsel for the respondents raised the point that the applicants approached the Court *a quo* with a matter that had arisen in the abstract. The argument was based on the suggestion that declarations of constitutional invalidity must be

predicated on live disputes and that courts will only entertain matters which involve actual or imminent harm to rights or interests and not disputes in abstract. The suggestion that a dispute must be "live" in all matters coming before the court may now be regarded as not entirely correct, regard being had to the various instances giving standing under s 85(1) of the Constitution. However, what is clear is that there must be a real, earnest and vital controversy requiring adjudication by the Court.

[69] The applicants had approached the Court *a quo* in the context of the promulgation of the Criminal Law (Codification and Reform) Amendment Act of 2023, which in turn had stemmed from the enactment of the Patriotic Bill. In their founding affidavit, the applicants specifically stated:

> "The application focuses on the constitutionality of ss 22A(2) and 22A(3) of the Criminal Code as amended by Act 10 of 2023. It is the Applicant's contention that both provisions purporting to foster patriotism and the penal provisions enforcing them are unconstitutional."

[70] It is apparent that the application before the Court *a quo* was thus driven solely by the applicants' view that the provisions concerning patriotism and the associated penal provisions following the amendment, were unconstitutional. While the cause of action was of a constitutional character, it was founded on the applicants' opinion that the impugned sections had the potential to violate certain fundamental rights. It was not suggested that there had been an actual or imminent violation of those rights. In its reasoning, the Court *a quo* stated:

> "This is a serious offence that has been placed under the genus of acts of treason in CHAPTER III of the Criminal Law Code, which attract severe penalties. There was therefore need for precision in its description. A mistake such as the one highlighted, if it was a mistake at all, creates confusion. It goes beyond mere semantics. It goes to the very essence of what it is that is being criminalised. Is it mere attendance or participation? What level, scope or extent of participation? A journalist wishing to cover such a meeting is likely to think twice before proceeding to the meeting. That hesitation does not augur well for the rights enshrined in s 58 and 61 of the Constitution."

[71] From the foregoing, it is evident that the public interest to be served was never demonstrated and that the matter was heard in the abstract, in the sense that there was no actual or an imminent infringement of the rights of the public before the court. Before this Court, counsel for the applicant appeared to concede that indeed there was no live dispute for determination but however maintained that the applicants were properly suited as they had approached the court *a quo* in terms of s 85(1)(d) and needed to only show that there was a likelihood of the infringement of their rights as a result of the enforcement of ss 22A(2) and 22A(3) of the Criminal Law Code. It is accepted that under s 85(1)(d) of the Constitution, an applicant is entitled to approach the Court in the public interest and seek relief that is beneficial to the public at large. But, as we have seen, such applicant must satisfy certain factors before he or she or it can have standing.

[72] In opposing the preliminary point raised by the respondents that there is no live dispute before this Court, counsel for the applicant argued that in bringing a s 85 application before the Court *a quo*, the applicants were only required to demonstrate a likelihood of their rights being infringed. In counsel's words, the applicants only had to show "a reasonable probability of such a contravention occurring". Section 85(1) of the Constitution provides:

> "85 Enforcement of fundamental human rights and freedoms
> (1)Any of the following persons, namely-
> …
> is entitled to approach a court, alleging that a fundamental right or freedom enshrined in this Chapter has been, is being or *is likely to be infringed*, and the court may grant appropriate relief, including a declaration of rights and an award of compensation." (emphasis added)

[73] In *United Parties* v *Minister of Justice, Legal and Parliamentary Affairs & Ors* 1997 (2) ZLR 254 (S) at p 259, the court in interpreting the phrase "likely to be contravened" used

in s 24 of the 1980 Constitution of Zimbabwe, a provision similarly worded to s 85(1) of the current Constitution in its use of the phrase "likely to be infringed", held that:

> "Much turns on the meaning of the phrase "likely to be contravened". Certainly is does not embrace any fanciful or remote prospect of the Declaration of Rights being contravened. Nor does it refer to the Declaration of Rights being liable to contravention. … *Rather it means a "reasonable probability" of such a contravention occurring. ... There must exist a realistic or appreciable probability- and not merely a reasonable possibility-* for there to be the requisite basis to invoke a constitutional challenge."(emphasis added)

[74] As stated in *United Parties* (*supra*), the applicants, in alleging the likelihood of an infringement of their constitutional rights, were required to demonstrate that there existed a realistic or appreciable probability of an infringement of the fundamental rights of the public at large. Instead, the applicants relied on hypothetical scenarios and general assertions that s 22A of the Criminal Law Code is vague and contains penal provisions that violate the Constitution. They gave the example of a journalist attending a meeting outside Zimbabwe during which discussions take place on the need for sanctions or a trade boycott against Zimbabwe. This falls short of establishing a likelihood of infringement of a fundamental right of the public as required by s 85(1)(d) of the Constitution. Linked to this, the absence of a concrete factual allegation of the likely infringement of a fundamental right meant that no real controversy was presented to the Court *a quo.*

[75] Subject to the right of a person to approach a court in the public interest alleging sufficient interest by the public in the relief prayed for, it is undeniable that a court should not waste its time, expertise and resources on matters that are unripe or moot, where any determination would be purely academic or hypothetical. This concern is particularly acute in cases challenging legislation as unconstitutional and that it infringes fundamental rights. For a constitutional challenge to be properly before the court, the applicant must

demonstrate that the public or a section of the public has suffered or is likely to suffer direct harm because of the law alleged to be unconstitutional.

[76] In the present case, the challenge to s 22A(3) of the Criminal Law Code arose in response to the enactment of the amendment to the Code. The applicants' founding affidavit indicated that their cause of action was based on the promulgation of ss 22A(2) and 22A(3). In their own words, the applicants contended that "both provisions purporting to foster patriotism and the penal provisions enforcing them are unconstitutional." Such a basis was insufficient to ground a challenge to the constitutional validity of s 22A. There was no allegation of a fundamental right having been, being, or likely to be, infringed by the provisions in question. No underlying dispute was presented against which the unconstitutionality of the impugned provisions could be assessed. The public interest to be served was not stated. How the public had a sufficient interest in the relief sought was not demonstrated. The application was therefore purely academic and abstract, seemingly premised on a speculative anticipation of a dispute regarding ss 22A(2) and 22A(3) of the Criminal Law Code.

[77] The foregoing analysis finds support in the remarks stated in *Mills* v *Green* 159 US 651 (1895) at 653, where the United States Federal Supreme Court stated that:

> "The duty of this Court, as of every other judicial tribunal, is to decide actual controversies by a judgment which can be carried into effect, and not to give opinions upon moot questions or abstract propositions, or to declare principles or rules of law which cannot affect the matter in issue in the case before it."

[78] The inevitable conclusion is that the constitutional invalidity challenged before the court *a quo* was based on an unripe matter that did not involve an actual or likely infringement of the constitutional rights of the public that the applicants purported to represent. The

issue was evidently not ready for adjudication by the Court *a quo* and, consequently, the declaration of invalidity cannot be confirmed. The applicants were required to demonstrate that the public, or a section of the public, was likely to experience a violation of rights as a result of the operation and application of s 22A(3) of the Criminal Law Code. In the circumstances, the applicants failed to demonstrate a cause of action enabling them to invoke standing under s 85(1)(d) of the Constitution. It seems to me, therefore, that the High Court decided a controversy that was not yet ripe and which was, therefore, not justiciable. However, as earlier noted, s 22A(3) having been declared unconstitutional by the Court *a quo,* the need for legal certainty requires that this Court determines whether the declaration was correctly made.

THE CONSTITUTIONALITY OF S 22A(3)

[79] Section 22A(3) of the Criminal Law Code provides that:

> "22A **Wilfully injuring the sovereignty and national interest of Zimbabwe**
>
> (1) In this section—
> "actively partake", in relation to any meeting, means partake therein with the intention of, or in the role of, promoting, advancing, encouraging, instigating or advocating for the object for which the meeting is convened (for the avoidance of doubt, no person contravenes this section who, at the meeting concerned, discourages or repudiates any object the promotion, advancement, encouragement or instigation of which, or advocacy for which, would have rendered that person liable to prosecution under this section)……
> (2) Any citizen of permanent resident…..who actively partakes in any meeting….shall be of guilty of wilfully damaging the sovereignty and national interest of Zimbabwe and liable to
>
> (i) the same penalties as for treason, in a case referred to in paragraph (a); or
> (ii) the same penalties as for subverting constitutional government, in a case referred to in paragraph (b).
>
> (3) Any citizen or permanent resident of Zimbabwe who, within or outside Zimbabwe, intentionally partakes in any meeting whose object or one of whose objects the accused knows or has reasonable grounds for believing involves the consideration of or the planning for the implementation or

enlargement of sanctions or a trade boycott against Zimbabwe (whether those sanctions or that boycott is untargeted, or targets any individual or official or class of individuals or officials, but whose effects indiscriminately affect the people of Zimbabwe as a whole or any substantial section thereof) shall be guilty of wilfully damaging the sovereignty and national interest of Zimbabwe and liable to-

(i) …
(ii)…

A. termination of the citizenship of the convicted person, if the convicted person is a citizen by registration or a dual citizen:

Provided that the convicting court shall not impose this penalty if it would effectively render the convicted person stateless;

B. cancellation of the permanent resident status of the convicted person, if the convicted person is a permanent resident; or

C. prohibition from being registered as a voter or voting at an election for a period of at least five years but not exceeding fifteen years; or

D. prohibition from filling a public office for a period of at least five years but not exceeding fifteen years, and, if he or she holds any such office, the convicting court may declare that that office shall be vacated by the convicted person from the date of his or her conviction, unless the tenure of the public office in question is regulated exclusively by or in terms of the Constitution—

in consideration of the sentence the court must have regard to the impact of the meeting and whether or not sanctions or trade embargo were imposed.

(4)…"

[80] The essence of the applicants' complaint was that s 22A(3) of the Criminal Law Code is unconstitutional as it criminalises a person who "intentionally partakes" rather than "actively partakes" used in s 22A(2). They also argued that s 22A(3) is too wide in its scope as it criminalises a person who may have attended a meeting without knowing that the meeting intended to call for sanctions or trade boycott against Zimbabwe.

[81] Before the Court *a quo,* the respondents appeared to accept that the phrase "intentionally partakes" in s 22A(3) of the Criminal Law Code was included in error. Before us, counsel for the respondent maintained that the phrase was included in error and ought to have been

kept as "actively partakes" used in s 22A(2) and defined in s 22A(1) of Criminal Law Code.

[82] The Court *a quo,* in its judgment, stated that it was unclear why s 22A(2) defines the term "actively partake", while the wording in s 22A(3), "intentionally partakes", remains undefined. The Court *a quo* found that this discrepancy created uncertainty regarding the nature, scope, and extent of participation contemplated under s 22A(3). It further held that the phrase "intentionally partakes" is central to the essential elements of the offence of attending the meeting, including the required state of mind. Consequently, the Court *a quo* concluded that s 22A(3) is vague and unconstitutional.

[83] There can be little doubt, from the foregoing, that the reasoning of the Court *a quo* was specious. An inquiry into the validity of a law requires more than an analysis of the context within which the legislative provision is used. The Court *a quo,* in determining the validity of the challenged provisions, ought to have looked at the section as a whole and given it its literal and grammatical meaning. This approach is consistent with principle that legislative provisions should be considered as a whole. In this regard, in *Biltrans Services (Pvt) Ltd* v *The Minister of Public Service, Labour and Social Welfare & Ors* 2016 (2) ZLR 306 (CC), the Supreme Court of Zimbabwe pertinently remarked as follows:

> "Such a piecemeal approach to the law offends against the settled rule of interpretation to the effect that legislative provisions must be read in their context, and construed with proper regard to the subject matter the instrument deals with and the object it seeks to achieve. A statute should be construed so that effect is given to all its provisions, so that no part will be inoperative or superfluous, void or insignificant. A court must not in expounding a statute be guided by a single sentence or member of a sentence. It must look to the provisions of the whole law, and to its object and policy. See *Hibbs v Winn* 542 US88 (2004) at 101."

[84] A reading of s 22A(3) as read with s 22A(5) clearly evinces the intention of the legislature. Section 22A(5) of the Criminal Law Code, which was evidently overlooked by the Court *a quo*, states as follows:

> "(5) In any prosecution for an offence against subsection (3) it shall not be a defence that the accused did not at first know or realise that the meeting which is subject to the charge involved the consideration of sanctions against or a trade boycott of Zimbabwe if after that topic was raised by any participant at the meeting the accused can be proved to have promoted, advanced, encouraged or advocated for the imposition of sanctions or a trade boycott against Zimbabwe."

[85] As already noted, the phrase "intentionally partake" is not defined in s 22A(1) whilst the phrase "actively partake," used in s 22A(2), is defined in that section. It was on this basis that the applicants contended, and the Court *a quo* accepted, that s 22A(3) was therefore unconstitutional. There can be no doubt that this conclusion was the result of a failure on the part of the Court *a quo* to consider the section as a whole. A reading of the whole provision shows that the legislature intended that the word "intentionally" be given its ordinary meaning. In ordinary parlance, "intentional" simply means deliberate or wilful. Put another way, it means done wilfully, with reason and purpose. The ordinary meaning of s 22A(3) therefore is that, where any person with reason or purpose, knowingly partakes in any meeting involving the planning or implementation of sanctions or a trade boycott against Zimbabwe and promotes the imposition of such sanctions, such person shall be guilty of the offence of wilfully damaging the sovereignty and national interest of Zimbabwe. Subsection (5) thereof expressly provides that it shall not be a defence for an accused person to aver that he or she did not at first know or realise that the meeting which is subject to the charge involved the consideration of sanctions against or a trade boycott of Zimbabwe if, after that topic was raised by any participant at the meeting, the accused promoted, advanced, encouraged or advocated for the imposition of sanctions or

a trade boycott against Zimbabwe. It therefore follows that, for a guilty verdict in terms s 22A(3) to be returned, the element of intent as provided must be satisfied by the prosecution. The accused must have intentionally attended the meeting and thereafter made common cause with the other participants who advocated for the imposition of such sanctions.

[86] There is therefore no ambiguity attaching to s 22A(3) of the Criminal Law Code. It is clearly worded. The use of the phrase "intentionally partake" means exactly what is means. If a person, right from the onset, purposefully or knowingly engages in a meeting where sanctions or a trade boycott are discussed, such person will be guilty of an offence in terms of s 22A(3) of the Criminal Law Code. Where, however, such person did not initially know that the meeting was to discuss these issues but thereafter makes common cause with other participants, such person shall be guilty of the offence. In other words, where the person attends the meeting and thereafter disassociates himself from the intended sanctions, such person shall have a defence.

[87] In our decision in *Maponga & Ors* v *The Minister of Justice, Legal and Parliamentary Affairs & Ors* (*supra*) this Court set out the import of the section as follows:

> "A reading of s 22A(3) therefore shows that, where any person with reason or purpose, knowingly partakes in any meeting involving the planning or implementation of sanctions or a trade boycott against Zimbabwe and promotes the imposition of such sanctions, such person shall be guilty of the offence of wilfully damaging the sovereignty and national interest of Zimbabwe. Subsection (5) thereof expressly provides that it shall not be a defence for an accused person to aver that he or she did not at first know or realise that the meeting which is subject to the charge involved the consideration of sanctions against or a trade boycott of Zimbabwe if, after that topic was raised by any participant at the meeting, the accused promoted, advanced, encouraged or advocated for the imposition of sanctions or a trade boycott against Zimbabwe. It therefore follows that, for a guilty verdict in terms s 22A(3) to ensue, the element of intent as provided must be satisfied by the prosecution. The accused must have intentionally attended the meeting and

thereafter made common cause with the other participants who advocated for the imposition of such sanctions.

[92] There is therefore no ambiguity attaching to s 22A(3) of the Criminal Law Code. It is clearly worded. The phrase "intentionally partake" is not shrouded in secrecy. If a person purposefully or knowingly engages in a meeting where sanctions or a trade boycott are discussed, such person will be guilty of an offence in terms of s 22 A(3) of the Criminal Law Code. Where, however, such person did not initially know that the meeting was to discuss these issues but thereafter makes common cause with other participants, such person shall be guilty of the offence. In other words, where the person attends the meeting and thereafter disassociates himself from any discussion on the intended sanctions or does not participate in the meeting, such person shall have a defence."

[88] From the foregoing, it is apparent that the Court *a quo* erred in concluding that the undefined phrase "intentionally partakes" in s 22A(3), when contrasted with the defined phrase "actively partake" in s 22A(2), created uncertainty as to the nature and extent of the participation contemplated by the provision. That conclusion completely ignored s 22A(5) and was therefore inconsistent with the settled principles governing statutory interpretation in this jurisdiction. Had the court *a quo* applied the established canons of statutory interpretation, it would inevitably have concluded that the phrase "intentionally partakes" was intended to apply to a citizen or permanent resident who deliberately and purposefully attends and participates in a meeting convened for the purpose of imposing, implementing or expanding sanctions or a trade boycott against Zimbabwe.

[89] The absence of a statutory definition does not render a provision uncertain or unconstitutional. Rather, where Parliament has not defined a word or phrase, it is the duty of the court to ascertain the intention of the legislature by interpreting the provision in its proper context and in a manner that gives effect to its purpose. Indeed, Acts of Parliament seldom define every word or expression they contain. It is precisely in such circumstances that the courts perform their judicial function of interpreting legislation and giving effect

to the true meaning and purpose intended by the legislature. See *Chari* v *The Minister of Justice, Legal and Parliamentary Affairs N.O. & Anor* HH 300/25.

[90] The Court further failed to consider whether the impugned law could be interpreted in a manner consistent with the Constitution. In other words, it failed to apply the presumption of constitutionality before declaring the law unconstitutional. The presumption of constitutionality requires a court interpreting the challenged law to commence the process of interpretation by presuming the statute being challenged to have been enacted within the parameters of the Constitution. See *Zimbabwe Electoral Commission & Anor* v *The Commissioner General Zimbabwe Republic Police & Ors* CCZ 3/14. Consequently, the determination by the Court *a quo* that s 22 A(3) was constitutionally invalid cannot, in these circumstances, be sustained.

[91] During the hearing of the matter, there was a concession by counsel for the respondent that the wording in s 22A(3) of the Criminal Law Code contains an error. That concession was not properly made. The further suggestion, both in the Court *a quo* and this Court, that such error places a duty upon the respondents to rectify it is consequently without merit. Clearly there is no error in the wording of the provision, as the intention of the legislature is that a conviction can only ensue where one has intentionally partaken in the meeting.

[92] The issue that then arises is whether the Court *a quo* properly concluded that the penal provisions contained in ss 22A(3)(ii)(A)(B)(C) and (D) of the Criminal Law Code contravene ss 39, 58, 61, and 67(3) of the Constitution.

WHETHER S 22A(3)(II)(A) VIOLATES S 39 OF THE CONSTITUTION

[93] The applicants had alleged that the penal provision under s 22A(3)(ii)(A) relating to the revocation of citizenship was unconstitutional as it violated s 39 of the Constitution. As previously noted, an application under s 85(1) cannot seek to enforce rights which are not contained in the Bill of Rights, fa. The right to citizenship is not one that falls under the Bill of Rights, falling as it does under Chapter 3 of the Constitution. The applicants could not therefore have challenged a constitutional violation of s 39 in a s 85(1) application.

[94] As already noted, counsel for the applicants conceded that the applicants could not have properly challenged the penal provision relating to the revocation of citizenship in a s 85 application. Nor could the Court *a quo* have properly determined the constitutionality of s 22A(3)(ii)A, which relates to the termination of citizenship on conviction, within the framework of an application brought under s 85(1). Such concession by counsel was properly made in my view.

WHETHER S 22A(3)(ii)(C) AND (D) VIOLATES S 58, 61 AND 67(3) OF THE CONSTITUTION

[95] The right to vote is a fundamental human right provided for in the Bill of Rights. But it is not absolute. Section 67(3) of the Constitution provides for this right in the following terms:

> "(3) Subject to this Constitution, every Zimbabwean citizen who is of or over eighteen years of age has the right—
>
> (a) to vote in all elections and referendums to which this Constitution or any other law applies, and to do so in secret; and
>
> (b) to stand for election for public office and, if elected, to hold such office."

[96] In *Shumba & Ors* v *Minister of Justice, Legal and Parliamentary Affairs & Ors* CCZ 4/18 at p 7, this Court held that:

> "As is apparent from the above, subs (3) confers the right to vote in all elections, on 'every Zimbabwean who is of or over eighteen years of age'. This right however is not absolute, since the same provision is prefixed with the words 'Subject to this Constitution', whose effect is to limit this very right. The clear meaning of this provision is that it must not be read in isolation but must 'subject' itself to other provisions of the Constitution that have a bearing, no matter how tangential, on the issue of electoral voting. The provision must in other words, cohere or be consonant with all such other constitutional provisions."

[97] The right to vote and hold elected office is, by its nature, limited. It is regulated by constitutional provisions and, by extension, the Electoral Act. Of importance is the Fourth Schedule of the Constitution, which provides for the requisite qualifications and disqualifications of voters in Zimbabwe. Section 2 of that Schedule provides for the disqualification of a registered voter. The provision provides as follows:

> "2. A person is disqualified to be registered as a voter-
> (a) while he or she is detained as mentally disordered or intellectually handicapped under an Act of Parliament relating to mental health;
>
> (b) if he or she has been declared by order of a court to be incapable of managing his or her affairs, for so long as the order remains in force; or
>
> (c) *if he or she has been convicted of an offence under the Electoral Law and declared by the High Court to be disqualified for registration as a voter or from voting, for the period he or she has been declared disqualified, but the period must not exceed five years.*" (emphasis added)

[98] The Fourth Schedule, in no uncertain terms, states that where any person is found guilty of an offence under the Electoral Law and is declared to be disqualified to be registered as a voter or from voting, such person shall be declared disqualified for a period of not

more than five years. The disqualification also applies to mentally challenged voters and voters declared to be incapable of managing their affairs.

[99] The Electoral Act states that any disqualification from voting or holding office cannot exceed a five-year period. Sections 46(20), 125(5), 133K(4) and 138 of the Electoral Act have created offences in which, *inter alia*, a penalty of disqualification from voting and holding office for a period of not more than five years can be imposed. For example, s 138 provides as follows:

> **"138 Additional penalties for corrupt practices.**
> Any person convicted of a corrupt practice by the High Court may, in addition to any other punishment, be declared to be incapable, for a period not exceeding five years from the date of his or her conviction, of—
>
> (a) being registered as a voter or voting at an election; or
> (b) filling a public office, other than a public office the tenure of which is regulated exclusively by or in terms of the Constitution, and, if he or she holds any such office, the High Court may declare that that office shall be vacated by him or her as from the date of his or her conviction."

[100] *In casu,* the Court *a quo* concluded that s 22A(3)(ii)(C) and (D) of the Code, which prohibits, on conviction, registration as a voter and filling a public office, is unconstitutional. In arriving at this finding, the Court reasoned that s 67(3) of the Constitution gives every Zimbabwean the right to vote and hold public office and that, in certain circumstances, the law provides procedures under applicable subsidiary legislation for the removal of persons from office on specified grounds. The Court *a quo* therefore found that there was no reason or basis for the Criminal Law Code to involve itself in this area and include restrictions on voting as a criminal penalty provision.

[101] The Court *a quo's* analysis of the constitutionality of s 22A(3)(ii)(C) and (D) was wrong. The correct inquiry was not whether the Criminal Law Code may contain penal provisions disqualifying individuals from voting or holding public office, but whether

such provisions are permissible and align with the spirit and intent of the Constitution. The Criminal Law Code codifies criminal offences and their corresponding penalties. Section 67(3) of the Constitution makes it clear that the right to vote is subject to the Constitution. Whilst the Fourth schedule to the Constitution provides the qualification and disqualification for registration as a voter and specifically itemises situations covered by other statutes, it does not state that no other statutory provision may make provision for such disqualification.

[102] Section 86 of the Constitution provides that the fundamental rights and freedoms set out in Chapter 4 may be limited only in terms of a law of general application, to the extent that such limitation is fair, necessary and justifiable in a democratic society based on openness, justice, human dignity, equality and freedom. There can be no doubt that the Criminal Law Code is a law of general application. In my view, and on a consideration of all the circumstances, it cannot be said that the penalty under s 22A3(ii) C and D is not consistent with s 86 of the Constitution.

[103] The Code criminalises the situation where a citizen or permanent resident intentionally participates in a meeting whose object is the implementation or enlargement of sanctions or a trade boycott against Zimbabwe and such person makes common cause with the other participants. A prohibition from being registered as a voter or holding a public office following a conviction in these circumstances would be necessary in the interest of public security, public order and the general economic interests of Zimbabwe. The limitation is rationally connected to the need to preserve the national interest of Zimbabwe and is fair, necessary, reasonable and justifiable in a democratic society based on openness, justice, human dignity, equality and freedom. Any argument to the contrary would be untenable.

[104] Secondly, the limitations are justifiable. The rights to vote and to stand for public office exist to protect and strengthen democratic governance and to promote the socio-economic development of the nation. A person who knowingly and intentionally participates in a meeting convened to advocate for the imposition of sanctions or a trade embargo against Zimbabwe, and actively supports that objective, cannot reasonably contend that the consequent limitation of those rights is unconstitutional. The restriction operates as both a punitive and deterrent measure, applying only to persons convicted in circumstances involving aggravating factors. Furthermore, the period of disqualification is calibrated according to the seriousness of those aggravating circumstances, thereby ensuring proportionality. Such a disqualification is necessary to safeguard public order and protect the general economic interests of Zimbabwe.

DISPOSITION

[105] Having declared the impugned law to be unconstitutional, the Court *a quo* should have limited its retrospectivity and further suspended the declaration of invalidity to give the relevant Minister the opportunity to regularise the invalidity. The Court *a quo* did not do so. However, in view of the conclusion reached that the declaration of invalidity cannot stand, this issue falls away.

[106] The applicants did not establish sufficient interest by the public in the relief they sought before the Court *a quo.* They did not establish standing to do so. It was unclear which section of the public stood to be prejudiced in the enjoyment of the fundamental rights in question as a result of the operation of the law. Put another way, it remains unclear how the public had a sufficient interest in the relief that was sought *a quo*. The matter was therefore not justiciable. A hypothetical cause of action unrelated to any public

interest was brought before the Court *a quo*. Given these circumstances, the declaration of invalidity of 22 A(3), inclusive of its penalties was, therefore, not correctly made.

[107] The Court must, consequently, decline to confirm the declaration of invalidity. As a corollary, the judgment of the Court a quo granting the *declaratur* must be set aside.

[108] Regarding costs, I see no reason to depart from the usual practice of the Court not to award costs in matters of this nature.

[109] In the result, the following order is made:

(1) The Court declines to confirm the declaration of invalidity of s 22 A(3) of the Criminal Law (Codification and Reform) Act [*Chapter 9.23*] made by the High Court in Judgment Number HH/315/25 delivered on 13 June 2025.

(2) Pursuant to s 17(1)(a) of the Constitutional Court Act, the aforesaid judgment is set aside.

(3) There shall be no order as to costs.

MAKARAU JCC: I agree

GOWORA JCC: I agree

HLATSHWAYO JCC: I agree

PATEL JCC: I agree

GUVAVA AJCC: I agree

MAVANGIRA AJCC: I agree

Mbidzo, Muchadehama & Makoni, applicant's legal practitioners

Civil Division of the Attorney General's Office, respondent's legal practitioners